

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

**FILED — CLERK
OF COURT
JUN 02 2026**

MARCUS JOHNSON,
Plaintiff,

v.

Case No. 26-CV-0412

NEXUS DYNAMICS CORP.,
Defendant.

ORDER ON DEFENDANT'S MOTION TO COMPEL

Before the Court is Defendant's motion to compel production of the September audit file and the related custodian communications. The Court has reviewed the parties' letter briefs, the deposition transcript of Marcus Johnson, and the record of the October 2025 compliance review.

Defendant argues the audit file is responsive to Request No. 12 and that Plaintiff's objections were waived as untimely. Plaintiff responds that the file contains privileged work product prepared at the direction of counsel after the preservation notice issued.

Having weighed the parties' submissions under Rule 26(b)(1), the Court finds the September audit file was prepared in anticipation of litigation following the document preservation notice, and that Defendant has not shown substantial need sufficient to overcome the work product protection.

Accordingly, IT IS HEREBY ORDERED that:

Defendant's motion to compel production of the September audit file is DENIED.

The parties shall meet and confer on the remaining custodian list disputes and submit a joint status letter within fourteen days of this Order.

SO ORDERED.

Dated: June 2, 2026
New York, New York

United States District Judge